

thirty (30) days from notice of entry of this order.

3. A proposed form of order was lodged with the Court which the Court shall execute and enter.

6. 9:00 AM CASE NUMBER: L24-09342

CASE NAME: WELLS FARGO BANK, N.A. VS. MARTIN GONZALEZ

***HEARING ON MOTION FOR DISCOVERY MOTION TO DEEM REQUESTS FOR ADMISSION AND NONAPPEARANCE FILED BY PLN ON 08/19/2025**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A. (“Plaintiff”) filed a Motion to Deem Requests for Admissions Admitted on August 19, 2025 (the “Motion to Deem Admissions”). The Motion to Deem Admissions was set for hearing on November 25, 2025. The motion is unopposed.

Background

Plaintiff served Defendant Martin Gonzalez (“Defendant”) with a Requests for Admission (Set One). See Declaration of Douglas Agne filed August 19, 2025 (“Supporting Declaration”), ¶1 and **Exhibit A** thereto (the “RFAs”). The RFAs were served on February 27, 2025 by mail. *Id.* at ¶1 and **Exhibit A** [attached Declaration of Service dated February 27, 2025 (the “Proof of Service”)].

With a five calendar day extension for service of the RFAs by mail, the responses were due to be served on or before April 3, 2025 (30 days from and after February 27, 2025 was March 29, 2025 and five calendar days thereafter fell on April 3, 2025). No responses were received by that deadline or through the time of the filing of the motion. See *id.* at ¶12.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b). The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section

2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings as to the discovery requests at issue:

1. Defendant was duly served with the subject RFAs.
2. No timely response was made to the RFAs by Defendant.
3. No opposition or other responsive pleadings by Defendant have been filed with the Court.

Sanctions

Plaintiff does not seek imposition of sanctions.

Disposition

The Court further finds and orders as follows:

1. The Motion to Deem Admissions is GRANTED.
2. The truth of the facts recited in RFA Nos. 1 through 6 and RFA Nos. 8 through 11 are DEEMED ADMITTED by Defendant.
3. The genuineness of the document attached as Exhibit A to the RFAs, pursuant to RFA No. 7, is DEEMED ADMITTED by Defendant.
4. A proposed form of order was lodged with the Court which the Court shall execute and enter.

7. 9:00 AM CASE NUMBER: L24-09762
CASE NAME: WELLS FARGO BANK, N.A. VS. MOHAMMAD KHESRAWI
***HEARING ON MOTION IN RE: MOTION FOR JUDGMENT ON PLEADINGS FILE BY PLN ON**
09/02/2025
FILED BY: WELLS FARGO BANK, N.A.
TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A. ("Plaintiff") filed a Motion for Judgment on the Pleadings on September 2, 2025 (the "Motion for Judgment on the Pleadings"). The Motion for Judgment on the Pleadings was set for hearing on November 25, 2025.

Background

The Motion for Judgment on the Pleadings is based on the contention that the operative complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. Plaintiff contends that defendant Mohammad Khesrawi (the "Defendant") admits all statements in the complaint are true and that Defendant owes the alleged debt.

Analysis